

SCALIA, J., dissenting

This is not the system we have had, and is not the system we should desire.

* * *

Because this statute should not be interpreted to confer upon the entire electorate the power to invoke judicial direction of prosecutions, and because if it is so interpreted the statute unconstitutionally transfers from the Executive to the courts the responsibility to “take Care that the Laws be faithfully executed,” Art. II, § 3, I respectfully dissent.